TOWNSHIP OF LINCOLN
CLARE COUNTY
175 LAKE GEORGE AVE., P.O. BOX 239
LAKE GEORGE, MI 48633
phone: [989] 588-9841 website: www.lincolntwp.com

Lincoln Township Zoning Board of Appeals

TBD – Chair ***Marshall Swanson*** – Vice-Chair
TBD– Secretary ***Tamara McCaslin*** - Member
Jerry Bridges – Township Board ex Officio ***Robert Keller*** – Member
Jamie Lease - Member

Roger Carey – Zoning Administrator
David Lipovsky – Building Inspector
Deb Sherrod – Recording Secretary

Lincoln Township Zoning Board of Appeals
Regular Meeting
Wednesday, January 13, 2021
(Via Zoom)

The meeting was called to order by Acting Chair McCaslin at 7:00 pm.

Roll Call:
Present – Board Members: McCaslin, Bridges, Swanson, Lease
Staff: Clerk Carol Majewski (hosting), Zoning Administrator Roger Carey, Recording Secretary Sherrod
Absent –Keller
Public – 2

Approval of Agenda: Swanson moved to approve the agenda as presented; Bridges seconded. Motion passed with all in favor.

Public Comment: Acting Chair McCaslin stated that during this session, any person may speak for up to 3 minutes, and speakers may only speak once. Please direct all questions and comments to the Chair.

Approval of Minutes:

Regular Meeting minutes of Wednesday, December 9, 2020 – It was moved by Bridges and seconded by Swanson to accept the minutes as written. The motion passed with all in favor.

Conflict of Interest Statement (Declare and Cite): No conflict of interest was stated by present members.

Application for Variance: Application for a Variance was made on October 28, 2020, by Christa and Jeff Pitock for their property at 243 Arbor Dr., Lake, Michigan 48632, consisting of Lot 12, Supervisor's Plat of Bearly Subdivision, Tax ID # 010-100-012-00. They are requesting approval for the construction of a deck out of compliance with the front yard setbacks and side yard setback which is out of compliance with the Lincoln Township Zoning Ordinance.

Public Notice: Notice of public hearing was posted at least 15 days prior to the hearing. The following was published in *The Clare County Cleaver* December 24, 2020:

The Lincoln Township Zoning Board of Appeals will conduct a Public Hearing on Wednesday, January 13, 2021, at 7:00 pm at the Lincoln Township Hall*, 175 Lake George Avenue in Lake George, Michigan. The Zoning Board of Appeals will consider the appeal of Christa and Jeff Pitock for a variance on the property #010-100-012-00, Lot 12, located at 243 Arbor Dr., Lake, Michigan 48632. This appeal is to allow the construction of a deck in the front yard within the required 50 foot set-back from the Lake which would be out of compliance with the Lincoln Township Zoning Ordinance. Written comments may be sent to the Lincoln Township Zoning Board of Appeals, P.O. Box 239, Lake George, MI 48633 or by e-mail: clm@lincolntwp.com and must be received by 5:00 p.m. on Tuesday, January 12, 2021.
*NOTE: If necessary, this hearing will be held remotely, and details will be available on the front page of Lincoln Township's webpage: www.lincolntwp.com in the Meeting Notices.

Notifications were sent to all property owners within 300 feet of the property for the purpose of public comment being made to the ZBA. The public hearing information was also posted at the township hall.

Explanation of Practical Difficulty: Acting Chair McCaslin read the following statement:

The Lincoln Township Board of Appeals must follow the variance standards created by Michigan Statute and Ordinance 44 of Lincoln Twp. In accordance with these standards the ZBA must determine that a Practical Difficulty exists in order to grant a variance. Practical Difficulties as identified in Section8.7 of the Lincoln Township Zoning Ordinances ARE THE LAW. They are as follows:

1. Practical Difficulty: That there are practical difficulties that prevent carrying out the strict letter of this Ordinance due to unique circumstances specific to the property such as its narrowness, shallowness, shape, or topography, and which do not generally apply to other property or uses in the same district and shall not be recurrent in nature. That a genuine hardship exists due to the circumstances are Unique to the Property
2. Circumstances: That the practical difficulty or special condition or circumstance is not a result of the actions of the applicant. That the variance will relate only to property described in the variance application. That granting the variance will not grant an applicant any special privilege.
3. Ordinance Purpose Adherence: Does this request relate to properties other than described in the Variance request?
4. Variance Harmony: That the variance will be in harmony with the purpose of this Ordinance and the intent of the District, including the protection of public health, safety and welfare in general and vehicular and pedestrian circulation specifically.
5. Effects: That the variance will not cause a substantial adverse effect upon surrounding property including property values and the development, use and enjoyment of property in the neighborhood or District.
6. Property Use: That strict compliance with the site development requirement in question would unreasonably prevent the owner from using the property for a permitted purpose or would render conformity unnecessarily burdensome.
7. Minimum Variance: That the variance requested is the minimum amount necessary to overcome the inequality inherent in the particular property or mitigate the practical difficulty.

Denial of Zoning Application:

The following is the text of the Zoning Permit denial:

Christa and Jeff Pitock
6843 Newport South Rd
Newport, MI 48166

Re: Application for a deck at 243 Arbor Dr. on lot # 010-100-012-00.
Christa and Jeff Pitock

I am denying your application for a deck at 243 Arbor Dr. lot # 010-100-012-00 due to failure to meet the required 50-foot front setback and the 5-foot side setback.

Upon investigation, due to the angle of your house and the lake, one part of your deck would be 34 feet from the lake and one part would be 26 feet from the lake. According to our Zoning Ordinance, Article 3, ZONING DISTRICTS, REGULATIONS, Footnotes for Table 3-4 Site Development Requirements, Paragraph 5 (below) this is not allowed. Our Ordinance says: in no case shall such setback be less than fifty (50) feet.

Also, the side of the deck would be around 3 feet from the Side lot line; this also is not allowed according to our Zoning Ordinance Article 3, ZONING DISTRICTS, REGULATIONS, Footnotes for Table 3-4 Site Development Requirements, Paragraph 6, (below). Our Ordinance says: in no case shall a side yard setback be less than five (5) feet.

5. Front Yard Setback Measurements and Special Water Setbacks:
a. Measurement: Unless specified otherwise in this Ordinance, including (b) below, front yard setbacks shall be measured from the road right-of-way line constituting the front lot line.
b. Waterfront Lot: In the case of a waterfront lot, the front yard shall be that yard adjacent to the water body and the front yard setback shall be measured from the ordinary high water mark or, where a shoreline wall is present, from the face of the shoreline wall. See Article 21 for definitions of “yard, front” and “ordinary high water mark”.
c. Ordinary High Water Mark Setback: In no case shall a structure be located closer than fifty (50) feet from the ordinary high water mark. Where there exist one (1) or more dwellings on waterfront lots located on one (1) or both sides of such lot, and where such dwellings are within one hundred (100) feet of such lot, the

required setback shall be the average setback of such existing dwellings measured from the ordinary high water mark. However, in no case shall such setback be less than fifty (50) feet. See Article 21 for definitions of "yard, front" and "ordinary high-water mark".

6. Side Yard Setbacks

b. R-2 and R-2A Districts: Side yard setbacks for principal buildings in the R-2 and R-2A Districts shall be 10' except that in the case of a lot recorded with the County Register of Deeds prior to the effective date of this Ordinance, that does not have a minimum lot width of one-hundred (100) feet at some point measured between the normally required front and rear yard setback distances according to Table 3-4, each required minimum side yard setback shall be equal to ten percent (10%) of the lot width but in no case shall a side yard setback be less than five (5) feet.

Purpose: The purpose of this hearing is to determine if indicators exist to grant a variance as the zoning permit filed by the residents on October 28, 2020, was denied. Application for a Variance was made on October 28, 2020 by Christa and Jeff Pitock for their property at 243 Arbor Dr., Lake, Michigan 48632, consisting of Lot 12, Supervisor's Plat of Bearly Subdivision, Tax ID # 010-100-012-00 They are requesting approval for the construction of a deck which is out of compliance with the Lincoln Township Zoning Ordinance.

Correspondence & Communications to ZBA: None were received.

Presentation by Lincoln Township Zoning Administrator:

I denied the application for a deck at 243 Arbor Dr. lot # 010-100-012-00 due to failure to meet the required 50-foot front setback and the 5-foot side setback. Upon investigation, due to the angle of the house and the lake, one part of the deck would be 34 feet from the lake and one part would be 26 feet from the lake. According to our Zoning Ordinance, Article 3, ZONING DISTRICTS, REGULATIONS, Footnotes for Table 3-4 Site Development Requirements, Paragraph 5 (below) this is not allowed. Our Ordinance says: in no case shall such setback be less than fifty (50) feet.

Also, the side of the deck would be around 3 feet from the Side lot line, this also is not allowed according to our Zoning Ordinance Article 3, ZONING DISTRICTS, REGULATIONS, Footnotes for Table 3-4 Site Development Requirements,

Paragraph 6, (below). Our Ordinance says: in no case shall a side yard setback be less than five (5) feet.
Front Yard Setback Measurements and Special Water Setbacks:

Waterfront Lot: In the case of a waterfront lot, the front yard shall be that yard adjacent to the water body and the front yard setback shall be measured from the ordinary high-water mark or, where a shoreline wall is present, from the face of the shoreline wall. See Article 21 for definitions of "yard, front" and "ordinary high-water mark".

Ordinary High-Water Mark Setback: In no case shall a structure be located closer than fifty (50) feet from the ordinary high-water mark. Where there exist one (1) or more dwellings on waterfront lots located on one (1) or both sides of such lot, and where such dwellings are within one hundred (100) feet of such lot, the required setback shall be the average setback of such existing dwellings measured from the ordinary high-water mark. However, in no case shall such setback be less than fifty (50) feet. See Article 21 for definitions of "yard, front" and "ordinary high-water mark".

Side Yard Setbacks

R-2 and R-2A Districts: Side yard setbacks for principal buildings in the R-2 and R-2A Districts shall be 10' except that in the case of a lot recorded with the County Register of Deeds prior to the effective date of this Ordinance, that does not have a minimum lot width of one-hundred (100) feet at some point measured between the normally required front and rear yard setback distances according to Table 3-4, each required minimum side yard setback shall be equal to ten percent (10%) of the lot width but in no case shall a side yard setback be less than five (5) feet.

Since 2013 the ZBA has had two variances requesting decks closer than 50 feet from the lake and both have been denied, setting and reinforcing precedence.

Presentation by the Petitioner: Mr. Pitock stated they purchased their property with high hopes of enjoying the lake and also dream of having a deck to heighten their enjoyment of the lake. Their neighbors on either side have decks which are closer to the lake than the ordinances allow. They are not asking for a large deck, just one large enough to sit and have coffee while watching activity on the lake. Their lot's angle makes the deck come too close to the lake.

Mrs. Pitock stated that their deck would not be a sight hindrance to the neighbors.

ZBA Members Comments & Questions:
Swanson: Can they shorten it up any? Mr. Pitock said maybe they could go to 12 feet by 18 feet. They are open to advice from the board.

Mrs. Pitock asked about the two properties mentioned that had been denied and wanted to know why they had been denied. ZA Carey answered that they were both denied because they were within the 50 foot setback. It did not have to do with the sight hindrance or disturbing the view of the neighbors.

McCaslin asked for any more questions. None being heard she moved on to the next section.

Public Comment: Acting Chair McCaslin made the following statement about Public Comment at this time:
I will allow public comments, only agenda items, (All comments shall be addressed to the Chair)

a. Each speaker shall give name and address.
b. A time limit may be imposed; I'm giving each speaker 5 minutes to speak.

Chair reserves the right to terminate a presentation or ask for summation if comments are repetitive.

Public Comment Closed by Chair:

Discussion and further questions by ZBA Members without comments or questions from the public.

Bridges referred to Article 11, Section 11.3 #2: *A change of tenancy or ownership of a nonconforming use is allowed provided there is no increase in the degree of nonconformance of the nonconforming use.* He stated that this property is nonconforming and therefore the ZBA cannot allow the deck as it will extend the nonconformance.

Swanson stated if they could shorten the deck that he would approve.

McCaslin reminded Swanson that all the setbacks need to be considered.

Bridges stated that shortening the deck will not take care of the nonconformance.

Acting Chair McCaslin opened the discussion back to the public.

Mr. and Mrs. Pitock both reiterated that the neighbors are closer to the water than theirs and that they are trying to be responsible in their plans. Since their house is old, built long before the ordinances, they should be allowed to make improvements.

McCaslin explained that making changes to nonconforming structures cannot be allowed.

Bridges said that they are not judging based on things that were done in the past. Second, we had a similar variance requested last year that was also turned down. The ordinance needs to be applied fairly to all.

McCaslin asked ZA Carey if he had any ideas for solutions. He said that they only way they could make it conform is by taking down the existing house and moving it back and rebuilding.

Bridges stated that even with the changes in the new ordinance, the 50 foot setback has been in it since at least 2003 because it helps to protect the lake.

After a question from the Pitocks about why they weren't told that they were not likely to win their appeal before they spent the money to make it. Several members of the board explained that it is not the board's or Zoning Administrator's jobs to find solutions to the problem; they are there to make sure that the ZA is doing his job according to the ordinances.

ZBA Members Finalize Finding of Facts Form: Acting Chair McCaslin reminded members that they should have the Finding of Fact Form, fill them out, sign them, and then deposit them at the township hall in the Treasurer's locked box in front of the hall.

An Explanation of this process is given to the applicant that after the ZBA makes and accepts a motion to deny or approve the Variance Request the applicant may wait to receive a final decision paper for court purposes. If the applicant does not want to wait for the final decision paper, the decision will not be final until after the next ZBA meeting. In the case of a hearing held via Zoom, the Certified Decision Form will be emailed to the applicant in order to expedite the process.

Motion: McCaslin made the following motion: In regard to the variance requested by Christa and Jeff Pitock, applicants, for their property at 243 Arbor Dr,, tax id #010-100-012-00, to allow the construction of a deck out of compliance with the front yard setback and the side yard setback which is out of compliance with the Lincoln Township zoning ordinance, I make a motion that the Zoning Board of Appeals deny the variance request.

Roll Call Vote: Bridges: Yes; Lease: Yes; McCaslin: Yes; Swanson: Yes. Motion passes; the appeal is denied 4 to 0.

Public Comment: Several comments were made.

Adjournment: McCaslin made a motion to adjourn; Bridges seconded. Motion passed with all in favor. Meeting adjourned at 8:01 pm.

Respectfully Submitted,

Deborah L. Sherrod, Recording Secretary